

MASTER SERVICES & SOFTWARE DEVELOPMENT AGREEMENT

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This Independent Contractor Services Agreement is entered into by and between **Apex Dynamics Global LLC** ('Client') and the undersigned independent contractor ('Developer'). By signing or performing work, Developer agrees to all provisions herein.

1. INTELLECTUAL PROPERTY ASSIGNMENT & EXCLUSIVE RIGHTS

Developer hereby irrevocably transfers, assigns, and conveys to Client all worldwide right, title, and interest in and to all intellectual property, software code, algorithms, workflows, and inventions conceived or produced during the engagement term. Such assignment takes effect immediately upon creation of said materials, irrespective of invoice payment status, approvals, or disbursement of contract fees. Developer expressly forfeits any right to retain, re-license, or reuse any underlying code libraries.

2. TERMINATION FOR CONVENIENCE & FEE FORFEITURE

Client reserves the sole and unrestricted unilateral right to terminate this Agreement or any active Milestone at any time, without prior written notice and without cause. Upon issuance of termination notice, Client shall have no obligation to compensate Developer for unbilled hours, work-in-progress, or partially delivered milestones. Conversely, Developer must provide no less than sixty (60) days advance written notice prior to resigning from any project.

3. UNLIMITED INDEMNIFICATION & LIABILITY DEFENSE

Developer agrees to defend, indemnify, and hold harmless Client, its directors, and affiliates against any and all claims, third-party damages, losses, data breach liabilities, or attorney fees arising directly or indirectly from Developer's deliverables. Developer's financial liability under this Agreement shall be uncapped and shall not be subject to any consequential or incidental damage limitation.

4. PAYMENT TERMS & SUBJECTIVE DISCRETIONARY WITHHOLDING

All invoices shall be subject to Net-90 disbursement terms. Client reserves the unilateral right to withhold or deduct payment for any submitted milestone based upon Client's subjective assessment of quality or functionality, without requirement of third-party audit or code arbitration.

5. ARBITRATION & EXCLUSIVE JURISDICTION

Any dispute arising out of this Agreement shall be resolved via binding private arbitration located exclusively in Dover, Delaware. Developer agrees to bear their own legal costs and half of all arbitrator fees, regardless of arbitration outcome.